COMMONWEALTH OF DOMINICA

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COMMONWEALTH OF DOMINICA

ACT NO. 14 OF 2023.

I Assent

LS

CHARLES A. SAVARIN
President

9th May, 2023

AN ACT TO PROVIDE GREATER PROTECTION FOR VICTIMS OF DOMESTIC VIOLENCE AND TO MAKE PROVISION FOR THE GRANTING OF PROTECTION ORDERS AND FOR RELATED MATTERS.

(*Gazetted* 11th May, 2023.)

BE IT ENACTED by Parliament of the Commonwealth of Dominica as follows:

PRELIMINARY

Short title and commencement.

1. (1) This Act may be cited as the —

DOMESTIC VIOLENCE ACT, 2023.

(2) This Act shall come into operation on a date fixed by the Minister by Order published in the *Official Gazette.*

Interpretation.

2. (1) In this Act —

"ammunition" includes—

(a) ammunition for any firearm, restricted ammunition, grenades, bombs and other similar prohibited missiles whether capable of use with a firearm or not;

(b) the complete round or its components, including cartridges cases, primers, propellants, powder, bullets and projectiles that are used in any firearm;

"applicant" means a person, including a child and a dependent who is or has been in a domestic relationship with the respondent and who applies or on whose behalf an application is made for an order under section 7;

"assigned officer"—

(a) means a probation officer, and

(b) includes a community service officer, a social worker, social welfare worker or any other person who may be assigned by the Court to supervise a child;

"attorney-at-law" means a person who has been admitted to practice law in the Commonwealth of Dominica;

"child" means a person under the age of eighteen years who —

(a) normally resides on a regular or ongoing basis with the applicant or respondent, whether or not the child is a child of the applicant and the respondent or either of them;

(b) is a biological child, an adopted child, a stepchild, a foster child or a child who is treated as a child of the family;

(c) is related by consanguinity or affinity to either the applicant or the respondent;

(d) is in the care and protection of the applicant or the respondent;

(e) is a person of whom either the applicant or the respondent is a guardian; or

(f) is or has been a member of a shared household; and

(g) is not a person who is or has been married or who is a cohabitant;

"Court" means the Magistrate's Court;

"cohabitant" means a person who is living or has lived with a person as a husband or wife although not legally married to each other;

"cyberstalking" means the use of the Internet or other electronic means to stalk or harass a person and includes—

(a) using any lewd, lascivious, indecent, or obscene words, images, or language, or suggesting the commission of any lewd or lascivious act anonymously or repeatedly whether or not conversation occurs; or

(b) threatening to inflict injury on a person or property of a person communicated with or any member of the family or household of a person;with intent to harass, intimidate, torment, or embarrass the person;

"dependant" means a person over the age of eighteen years who is differently-abled or by reason of physical or mental disability, age or infirmity is reliant on either the applicant or the respondent for his or her welfare;

"Director" means the Director of Social Services;

"domestic relationship" means a relationship between an applicant and a respondent in any of the following ways—

(a) they are or were married to each other, including marriage according to any law, custom or religion;

(b) they are cohabitants or were cohabitants;

(c) they are the parents of a child or are persons who have or had parental responsibility for the child, whether or not at the same time;

(d) they are family members related by consanguinity, affinity or adoption;

(e) they would be family members related by affinity if the persons referred to in paragraph *(b)* were, or were able to be married to each other;

(f) they are or were in an engagement, dating or visiting relationship which includes but is not limited to an actual or perceived romantic, intimate or sexual relationship of any duration;

(g) they share or shared the same household or residence; or

(h) they have been in relationship determined by the court to be a domestic relationship;

"domestic violence" means any controlling or abusive behaviour, or conduct or act that harms, injures or endangers the health, safety, life, limb or well-being, whether mental or physical, of a person or any child and includes —

(a) physical abuse or threats of physical abuse;

(b) sexual abuse or threats of sexual abuse;

(c) emotional, verbal or psychological abuse;

(d) coercion;

(e) molestation;

(f) arbitrary deprivation of liberty or forced confinement;

(g) economic abuse;

(h) intimidation;

(i) harassment;

(j) stalking and cyberstalking;

(k) damage to, destruction or deprivation of property; and

(l) entry into the applicant's residence without consent, where the parties do not share the same residence;

"economic abuse"—

(a) means the avoidance of financial obligations owed to the applicant and child or a dependant of the respondent; and

(b) includes—

(i) the deprivation or threatened deprivation of any or all economic or financial resources to which the applicant is entitled under the law or which the applicant requires out of necessity, including

household necessities for the applicant and any child or a dependant of the respondent, and mortgage repayments and rental obligations in respect of the shared household;

(ii) the disposal or threatened disposal of household effects or other property in which the applicant has an interest;

(iii) the alienation of assets, (whether moveable or immovable) shares, securities, bonds or similar assets or property in which the applicant has an interest or is entitled to use by virtue of the domestic relationship or which may be reasonably required by the applicant or his or her children or any other property jointly owned or separately held by the applicant; and

(iv) prohibiting or restricting access to resources or facilities which the applicant is entitled to use or enjoy by virtue of the domestic relationship, including access to the shared household;

"emergency monetary relief" means compensation for monetary losses suffered by an applicant and any child at the time of the issue of an interim protection order as a result of domestic violence, including —

(a) loss of earnings;

(b) medical and dental expenses;

(c) moving, relocation and accommodation expenses; or

(d) household necessities and other interim expenses;

"emotional, verbal and psychological abuse" means degrading or

humiliating conduct by the respondent to the applicant, and includes —

(a) repeated insults, ridicule or name calling;

(b) repeated threats to cause emotional pain;

(c) the repeated exhibition of behavior, such as obsessive possessiveness and jealousy, which constitutes invasion of the applicant's privacy, liberty, integrity or security;

(d) an act or behaviour constituting domestic violence where it is committed in the presence of a child and which is likely to cause injury to the child;

"*ex parte* application" means an application made without notice to the respondent;

"final protection order" means a protection order made under section 16;

"firearm" has the meaning assigned to it under the Firearms Act; Chap. 15:31.

"harassment" means engaging in a pattern of conduct that induces the fear of harm, including —

(a) watching or loitering outside of or near the building or place where the applicant resides, works or carries on business, studies or happens to be;

(b) repeatedly making telephone calls or inducing another person to make telephone calls to the applicant, whether or not conversation ensues;

(c) repeatedly sending, delivering or causing the delivery of letters, telegrams, packages, facsimiles, electronic messages or other objects to the applicant;

(d) repeatedly following, pursuing or accosting the applicant with the intention of inducing fear, or causing harm to the applicant;

"interim protection order" means a protection order made under section 8;

"intimidation" means uttering, conveying or causing a person to receive a threat which induces fear;

"judicial officer" means a Judge, Master or a Magistrate;

"member of the household" means a person who normally resides in the same dwelling house as the applicant or the respondent and is related to the applicant or respondent by blood, marriage or adoption;

"Minister" means the Minister responsible for social services;

"order" includes a protection order;

"physical abuse" means the intentional or reckless act of a person that—

(a) applies force to, or causes any impact on, the body of another person; or

(b) causes another person to fear that any force or impact is imminent,without that other person's consent or, where the act is likely or intended to cause injury to another person, with or without that other person's consent;

Chap. 14:01. "police officer" has the meaning assigned to it in the Police Act;

"prescribed" means prescribed by Regulations;

"protection order" means an interim protection order or a final protection order;

"public officer" has the same meaning as in the Constitution;

"Registrar" means the Registrar of the High Court;"

"repealed Act" means the Protection Against Domestic Violence. Chap. 35:05.

"respondent" means a person who is or has been in a domestic relationship with the applicant and against whom the applicant has applied for or obtained an order under this Act;

"sexual abuse" means any sexual conduct that abuses, humiliates, degrades or otherwise violates the sexual integrity of the applicant;

"shared household" means a household where the applicant and the respondent live or lived together in a domestic relationship;

"social worker" means a person designated as such in the Department of Social Services;

"social welfare officer" means a person designated as such in the Department of Social Services;

"spouse" includes a former spouse, a cohabitant or a former cohabitant;

"stalking" includes repeatedly following, pursuing or accosting the applicant;

"victim" means a person who alleges to have been subjected to an act of domestic violence; and

"visiting relationship" means a non cohabitational relationship which is otherwise similar to the relationship between a husband and wife.

(2) For the purposes of the definition of "domestic violence", threats, intimidation, harassment or stalking include threats, intimidation harassment or stalking or and cyberstalking on the Internet or by electronic means.

PART I
DOMESTIC VIOLENCE

Domestic violence prohibited.

3. (1) A person shall not engage in any conduct or act that constitutes domestic violence.

(2) A person who engages in any conduct or act that constitutes domestic violence commits a domestic violence offence, and shall be proceeded against in accordance with this Act.

Duty to inform victim and applicant of rights.

4. (1) A police officer at the scene of an incident of domestic violence or when the incident of domestic violence is reported shall —

(a) inform the victim of his or her rights in the manner as stated in Schedule I; and

Schedule I.

(b) deliver to the victim a printed copy of the information relating to the right of the victim under paragraph *(a)* as soon as possible thereafter.

(2) A police officer who receives a report of a breach of a protection order from an applicant or a victim shall inform the applicant or the victim of the right to lodge a concurrent complaint against the respondent if a criminal offence appears to have been committed against the applicant, the victim or a child.

(3) The Director shall inform an applicant or a victim of the relief available under this Act.

Arrest by police officer without warrant.

5. Subject to section 23, if a police officer reasonably suspects that a person has committed a domestic violence offence, the police officer may arrest the person at the scene of the incident of domestic violence, without a warrant.

Particular safeguards for detention of child.
Act No. [ ] of 2023.

6. (1) The Child Justice Act, 2023 and this section applies —

(a) if a person taken into police custody under section 5 is a child; and

(b) despite any other provision of this Act.

(2) The child shall be taken into police custody only as a last resort and for the least time that is justified in the circumstances.

(3) The child shall be held in police custody only in a way that allows the child to be held separately from any adult being held in police custody at the same place.

(4) A police officer shall notify the following persons that the child has been taken into police custody —

(a) a parent of the child, unless a parent cannot be found after making all reasonable enquiries;

(b) if the Director has assumed responsibility of the child under the Children (Care and Adoption) Act, 2023, the Director or a person nominated by the Director for the purpose.

Act No.6 of 2023.

(5) This section does not apply in relation to a child if a police officer believes on reasonable grounds that the child is an adult.

(6) In deciding whether the police officer had the reasonable grounds mentioned in subsection (5), the Court may have regard to the child's apparent age and the circumstances of the child's detention.

(7) In this section, "police custody" includes custody by the police in a place of assessment or secure residential facility.

PART II
PROTECTION ORDERS

Application for protection order. Schedule II.

7. (1) An applicant may apply to the Court, in the form set out as Form 1 in Schedule II, for a protection order on the grounds that the respondent has committed an act of domestic violence.

(2) A child or dependant may apply for a protection order under subsection (1) through —

(a) a person with whom the child or dependant ordinarily or periodically resides or resided with or is reliant on for his or her welfare or any adult member of his or her household;

(b) a parent or guardian or a person who is in *loco parentis* to the child; or

(c) the Director or other person who has parental responsibility for the child.

(3) An application made under subsection (1) may, subject to subsection (4), be brought on behalf of a victim by any other person who has a material interest in the well-being of the victim, including —

(a) a police officer;

(b) the Director; or

(c) an assigned officer,but the application shall be brought with the consent of the victim.

(4) A victim's consent shall be dispensed with if the victim is —

(a) a child;

(b) a dependant;

(c) differently-abled or physically or mentally incapacitated by unsoundness of mind or a disability;

(d) unconscious;

(e) under the influence of intoxicating liquor or is misusing drugs; or

(f) a person whom the Court is satisfied is unable to provide the required consent.

(5) The application made under subsection (1) may be brought outside the ordinary hours of the Court or on a day which is not an ordinary day for the sitting of the Court where the Court is satisfied that the applicant may suffer undue hardship if the application is not dealt with immediately.

(6) The application made under subsection (1) shall be accompanied by any report or document to be relied upon and an affidavit in support unless the Court otherwise orders and the affidavit shall include —

(a) the facts on which the application is based;

(b) the nature of the order applied for; and

(c) the name of the police station at which the applicant is likely to report any breach of the order.

(7) The application made under subsection (1) may be accompanied by supporting affidavit of a person who has knowledge of the matter concerned.

(8) The application and affidavits shall be lodged with the Registrar, who shall immediately submit the application and the affidavits with any supporting documents for consideration of the Court.

(9) The Court shall, on receiving an application under this section, issue summons to the respondent directing him or her to appear in court on the date named in the summons.

(10) In considering an application made under subsection (1), the Court —

(a) may require further oral evidence or evidence by affidavit; and

(b) shall record any oral evidence referred to in paragraph *(a)*.

Act No. of 2023.

(11) If the respondent is a child the Court shall have due regard to the Child Justice Act, 2023 in making an order under this section.

(12) The applicant may request that his or her physical address be omitted from the protection order.

Power of Court to issue interim protection order.

8. (1) If the Court is satisfied that the respondent is committing, or has committed or is likely to engage in conduct that would constitute domestic violence, the Court shall issue an interim protection order against the respondent, in accordance with Form 2 in Schedule II.

Schedule II.

(2) The Court may issue an interim protection order, on an *ex parte* application pending the hearing and determination of the proceedings for a protection order, if it appears necessary or appropriate to do so in order to ensure the safety and protection of the applicant.

(3) In exercising its powers under this section, the Court shall not refuse to issue an interim protection order by reason of the fact that the respondent has not been given notice of the proceedings.

(4) An interim protection order shall —

(a) be served on the respondent; and

(b) call upon the respondent to show cause on the return date specified in the interim protection order as to why the interim protection order should not be confirmed.

(5) The return date referred to in subsection (4) shall be at least ten days after the date of the service, under section 13, on the respondent of the interim protection order.

(6) An interim protection order may be made for a period of time as the Court considers necessary but shall not exceed twenty-eight days.

(7) An interim protection order is automatically extended for a period of fifteen days if the Court is unable to hear and determine the proceedings before the expiry of the period in subsection (6).

Terms of protection order.

9. (1) In granting a protection order the Court may prohibit the respondent from —

(a) committing any act of domestic violence;

(b) enlisting the help of a person to commit any act of domestic violence;

(c) entering the shared household, except that the Court shall only impose this prohibition only if it

appears to be in the interests of the applicant or any child or dependant;

(d) entering a specified part of the shared household;

(e) entering the residence of the applicant;

(f) entering the place of employment of the applicant;

(g) preventing the applicant, any child or dependant who ordinarily resides or has resided in the shared household from entering or remaining in the shared household or a specified part of the shared household;

(h) taking possession of, using, damaging, converting or otherwise dealing with property that the applicant may have an interest in or is reasonably used by the applicant;

(i) approaching the applicant within a specified distance; or

(j) committing any other act as specified in the order.

(2) In addition to the prohibitions referred to in subsection (1), the Court may direct that —

(a) any or all of the conditions of a protection order be applied for the benefit of a child or dependant;

(b) the respondent —

(i) return to the applicant specified property that is in his or her possession or under his or her control;

(ii) pay emergency monetary relief to the applicant;

(iii) pay interim monetary relief to the applicant for the benefit of a child or dependant, if there is no existing order relating to maintenance, until an obligation for support is determined under any other law;

(iv) immediately vacate any shared household for a specified period, whether or not the shared household is owned or leased by the respondent and the applicant, or solely owned or leased by the respondent or the applicant; or

(v) make or continue to make payments in respect of rent or mortgage payment for premises occupied by the applicant having regard to the financial needs and resources of the applicant and the respondent;

(c) the applicant, the respondent or both parties, or any child, dependant or other person affected by the act of domestic violence, receive professional counselling or therapy from a person or agency or from a programme which is approved in writing by the Director.

(3) The Court may impose any additional conditions which it considers reasonably necessary to provide and protect the safety of the applicant, a child or dependant, including an order that a police officer shall accompany the applicant to a specified place to supervise the collection of personal property.

(4) The Court may direct that any or all of the prohibitions or conditions contained in a protection order apply for the benefit of a child or dependant.

(5) The Court may —

(a) refuse the respondent contact with any child or dependant if it is shown that the contact is not in the best interests of the child or dependant; or

(b) order structured contact with a child or dependant;

(c) award the temporary custody of any child of the respondent to any person or institution;

(d) direct the respondent to afford the applicant or any child or dependant, access to their place of residence and use of the facilities associated with it; or

(e) direct the respondent to do or omit to do any act or thing which the Court considers necessary or desirable for the well-being of the applicant or any child or dependant.

(6) Subject to section 27, the Court shall not refuse to issue a protection order on the basis that —

(a) a single act has been committed or a single threat has been made by the respondent; or

(b) the acts or threats when viewed in isolation, appear to be minor or trivial.

(7) If under subsection (2)*(b)(vi)* the Court makes an order which includes counselling or therapy, the order shall specify —

(a) that the Court receive written notification from the counsellor or therapist of sessions missed by the applicant, the respondent or both, without reasonable excuse; and

(b) the date by which the counsellor or therapist shall submit a report to the Court in respect of the counselling or therapy, which includes a prognosis for recovery.

(8) If the Court makes an order which includes a direction that the respondent —

(a) vacate a shared household; or

(b) return to the applicant specified property that is in his or her possession or control,

the Court may, in the same order, if it considers necessary, direct a police officer to remove the respondent either immediately or within a specified time from the shared household, or to accompany the applicant, either immediately or within a specified time to specified premises, in order to supervise the removal of property belonging to the applicant and to ensure the protection of the applicant.

(9) The Court may make an order for the applicant or respondent to vacate any shared household after consideration of a social enquiry report prepared by an assigned officer.

(10) A protection order may be for such period as the Court considers necessary but shall not exceed three years.

(11) If an order contains any prohibitions or directions, the Court shall specify different periods, none of which shall exceed three years, as the period for which each prohibition or direction shall remain in force.

(12) If the respondent is a child the Court shall have due regard to the Child Justice Act, 2023 in making an order under this section.

Act No. [ ] of 2022.

Matters to be considered by Court.

10. In determining whether or not to impose one or more of the prohibitions or issue a direction specified in section 9, the Court shall have regard to the following —

(a) the nature, history, or pattern of the domestic violence that has occurred and whether a previous protection order has been issued;

(b) the need to protect the applicant and any other person for whose benefit the order has been granted, from further domestic violence;

(c) the welfare of any child or dependent;

(d) the accommodation needs of the applicant and any other person;

(e) the hardship that may be caused to the applicant as a result of making the protection order;

(f) the income, assets and financial obligations of the respondent, the applicant and any other person affected by the protection order;

(g) the need to preserve and protect the institution of marriage and other relationships while affording protection and assistance to the family as a unit; and

(h) any other matter, that in the circumstances of the case, which the Court considers relevant.

Undertaking from respondent.

11. (1) In any proceedings under this Act, the Court may at any time before the taking of evidence, accept an undertaking from the respondent given on oath, that the respondent shall not engage in conduct specified in the application for a protection order or any other conduct that constitutes domestic violence.

(2) Where an undertaking is given under subsection (1) the Court shall make a protection order in respect of the undertaking.

(3) An undertaking may deal with any matter that may be dealt with under an interim protection order or a final protection order, as the Court may determine.

(4) An undertaking shall remain in force for the period stated in the undertaking, but shall not exceed three years.

(5) Sections 13, 16 to 20 and Part III apply in relation to an undertaking as they do in relation to a protection order.

Seizure of firearm and dangerous weapons.

12. (1) The Court may make an order directing a police officer to seize any firearm, ammunition or dangerous weapon in the possession of the respondent, if the affidavit made under section 7(7) contains information to the effect that —

(a) the respondent has threatened or expressed the intention to kill or injure a person in a domestic relationship, including himself or herself whether or not by means of the firearm, ammunition or dangerous weapon; or

(b) possession of the firearm, ammunition or dangerous weapon is not in the best interests of the respondent or any other person as a result of the respondent's—

(i) state of mind or mental condition;

(ii) inclination to violence, whether a firearm, ammunition or a dangerous weapon was used in the violence or not; or

(iii) the use of or dependence on intoxicating liquor or misuse of drugs.

(2) If the Court has ordered the seizure of any firearm under this Act, the Court shall direct the Registrar to refer a copy of the affidavit made under section 7(7) to the Chief of Police for consideration in relation to the enforcement of the Firearms Act.

Chap.15:31.

Service of notice of proceedings.

13. (1) On an application for a protection order under section 7(1) and the granting of an interim protection order by the Court, the Registrar shall cause to be served on the respondent —

(a) a copy of the application and the interim protection order; and

(b) notice of the date on which, and the time at which the respondent is to appear before the Court to show cause as to why the interim protection order shall not be confirmed.

(2) A notice of the proceedings under subsection (1) shall be issued in the form set out as Form 3 in Schedule II.

Schedule II.

(3) If an application is filed in respect of a child or dependant, the Registrar shall cause to be served as soon as practicable on the parent or guardian of the child or dependant or other person with whom the child or dependant ordinarily resides or resides with on a regular basis —

(a) a copy of the application; and

(b) notice of the date on which, and the time and place at which, the application is to be heard.

(4) A notice of proceedings which is issued and served under this section is taken to be a summons that is duly issued and served pursuant to the Rules of Court made under section 40 and shall compel the respondent to appear in Court to answer to the application.

(5) A notice of proceedings may be served on the respondent or his or her agent and the Court shall receive proof of service by affidavit in the form set out as Form 4 in Schedule II. Schedule II.

(6) If the hearing of an application is adjourned because the application and notice of the proceedings have not been served on the respondent, the time and place fixed by the Court for the adjourned hearing, is the date, time and place stated in the new notice of proceedings.

Service other than personal service.

14. (1) If the Court has not served notice of proceedings under section 13 or the interim protection order on the respondent personally, it may make an order for substituted service of the notice of the proceedings or interim protection order.

(2) For the purpose of subsection (1) "substituted service" means service —

(a) by registered post to the last known address of the respondent;

(b) by leaving the document at the last known address of the respondent or his or her closest relative;

(c) at the workplace of the respondent;

(d) by advertisement in a newspaper of general circulation, which service is taken to have been effected at midnight on the date of the later advertisement, the cost to be borne by the applicant; or

(e) provided in any other manner as the Court may direct.

Filing of affidavit.

15. (1) The respondent shall, before the return date, file with the Registrar a supporting affidavit showing cause as to why the interim protection order must not be confirmed.

(2) A copy of the affidavit of the respondent shall immediately be served on the applicant.

(3) The applicant, on receipt of the affidavit may, before the return date, file an affidavit in reply, together with any supporting affidavit with the Registrar in which shall be stated the reasons why the interim protection order must be confirmed.

(4) A copy of the affidavit in reply of the applicant shall immediately be served on the respondent.

Power to issue final protection order.

16. (1) If notice of the proceedings has been served on the respondent under section 13 or 14 and the respondent fails to appear in person at the time fixed for the hearing, the Court may —

(a) proceed to hear and determine the matter in the absence of the respondent and issue a final protection order in the form set out as Form 5 in Schedule II; or

Schedule II.

(b) if the Court is satisfied, having regard to the materials before it, that it is appropriate to do so, adjourn the matter and issue a warrant for the respondent to be apprehended and brought before the Court.

(2) If the applicant or the person on whose behalf the application is made does not appear either in person or represented by an attorney-at-law, on the return date as stated in section 8(4) and (5) and the respondent appears in Court, the Court may —

(a) dismiss the application;

(b) having received a reasonable excuse for the non-appearance of the applicant or other person, adjourn the hearing on terms as it considers just; or

(c) if it is satisfied, having regard to the submissions

before it, that it is appropriate for evidence to be given by affidavit under this section, it may so direct, but the Court shall, on the application of any other party, order that the person making the affidavit attends for cross-examination.

(3) If the respondent appears on the return date in order to show cause as to why the interim protection order should not be issued or confirmed and the applicant or the person on whose behalf the application is made also appears, the Court shall proceed —

(a) to hear the matter and consider any evidence previously received under section 7(7) and (8); and

(b) to consider any further affidavit or oral evidence as it may direct, which shall form part of the record of the proceedings.

(4) On the return date, the Registrar shall submit to the Court —

(a) the application for the protection order;

(b) the interim protection order granted;

(c) any supporting affidavit made by the respondent; and

(d) any affidavit in reply made by the applicant.

(5) At the hearing of the matter, the Court may —

(a) decide the matter on the papers in the absence of either or both of the parties; or

(b) refer the matter for oral evidence.

(6) At the conclusion of the hearing under subsection (5)*(a)* or *(b)*, the Court—

(a) may confirm, amend, or set aside the interim protection order; and

(b) shall issue a final protection order in the form set out as Form 5 in Schedule II.

Schedule II.

(7) The Registrar shall immediately notify the parties of the order of the Court and shall—

(a) serve the original final protection order referred to in subsection (6)*(b)* on the respondent;

(b) serve a certified copy of the final protection order referred to in subsection (6) *(b)* on the applicant.

(8) A final protection order is for a period as the Court considers necessary but shall not exceed three years.

(9) If a final protection order contains any prohibitions or directions, the Court may specify different periods, none of which shall exceed three years, as the period for which each prohibition or direction remains in force.

Explanation of orders.

17. If the Court proposes to make an interim protection order or a final protection order and the respondent is before the Court, the Court shall explain to the respondent —

(a) the purpose, terms and effect of the order;

(b) the consequences of failing to comply with the order; and

(c) the means by which the order may be varied or revoked.

. **18.** A respondent is not bound by a final protection order — Respondent to have notice of final protection order.

(a) if he or she was not present at the time of the making of the order; or

(b) if the order has not been served on him or her personally or under section 14.

19. (1) If an order is in force, a party to the proceedings in respect of whom the order was made may make an application to the Court in the form set out as Form 6 in Schedule II, for an order to vary or revoke the order that is in force. Variation and revocation of orders. Schedule II.

(2) On an application made under subsection (1), the Court may by order, vary or revoke the order.

(3) A copy of an application made under this section shall be served on each person who was a party to the proceedings in respect of which the original protection order was made.

(4) In determining whether to vary or revoke an order and issue an order in the form set out as Form 7 in Schedule II, the Court shall have regard to the matters specified in section 10. Schedule II.

20. If an interim protection order or a final protection order is made or varied by the Court — Service of protection order.

(a) the Registrar shall arrange for the order to be drawn up in the form set out as Form 6 in Schedule II and filed with the Court; and Schedule II.

(b) the Court shall serve a copy of the order on —

(i) the respondent;

(ii) any other person to whom the order is to apply whether or not the person is a party to the proceedings; and

(iii) the police officer in charge of the police station located nearest to the area where the respondent or the applicant resides.

Breach of protection order.

21. (1) Subject to subsection (2), a person against whom an order has been made or to whom a direction has been issued by the Court who —

(a) has notice of the order or direction; and

(b) contravenes the order or fails to comply with the direction, is guilty of a summary offence and is liable —

(i) on a first conviction, to a fine of five thousand dollars or to three months' imprisonment;

(ii) on a second conviction, to a fine of ten thousand dollars or to twelve months' imprisonment or both;

(iii) on any subsequent conviction, to five years' imprisonment.

(2) If an order contains a direction of the Court under section 7 that the respondent seek counselling or therapy and the respondent has refused or neglected to comply with the direction the respondent is guilty of an offence and is liable on summary conviction to a fine of ten thousand dollars.

(3) It is a defence to an offence under subsection (2) that the neglect or refusal to comply was not unreasonable.

PART III
POLICE POWERS OF ENTRY AND ARREST

Duties of police officers.

22. (1) A police officer shall respond to every complaint or

report alleging domestic violence whether or not the person making the complaint or the report is the victim.

(2) A police officer responding to a domestic violence complaint shall complete a domestic violence report which forms part of a Domestic Violence Register to be maintained by the Bureau of Gender Affairs in the prescribed manner.

(3) A domestic violence report shall be in the form set out as Form 8 in Schedule II and shall include — Schedule II.

(a) the name of the parties;

(b) the relationship and sex of the parties;

(c) information relating to the history of domestic violence between the parties;

(d) the date and time the complaint was received;

(e) the type of the abuse and the weapon used, if any; and

(f) the names of any other person, including a person other than the parties who has made a complaint of domestic violence on behalf of one of the parties.

23. If a judicial officer is satisfied, by information on oath, that — Issue of warrant.

(a) there are reasonable grounds to suspect that a person on a premises has suffered or is in imminent danger of physical injury at the hands of another person in a situation amounting to domestic violence and needs assistance to deal with or prevent the injury; and

(b) a police officer has been refused permission to enter the premises for the purpose of giving assistance to the first mentioned person in paragraph *(a)*,

the judicial officer may issue a warrant in writing authorising a police officer to enter the premises specified in the warrant at any time within twenty- four hours after the issue of the warrant and subject to any conditions specified in the warrant, to take action as is necessary to prevent the commission or repetition of the offence or a breach of the peace or to protect life or property.

Police powers of arrest without warrant. Chap. 12:01.

24. (1) A police officer may act in accordance with the Criminal Law and Procedure Act, if the police officer has reasonable cause to believe that a person is engaging in or attempting to engage in conduct which amounts to physical violence and failure to act immediately may result in serious physical injury or death.

(2) This section does not authorise the entry on premises by a police officer, for the purpose of any search or the arrest of a person, otherwise than in connection with the conduct referred to in subsection (1).

(3) If a police officer exercises a power of entry under subsection (1), the police officer shall immediately submit a written report to the Chief of Police through the head of his or her division or through his or her supervisor and the report shall contain—

(a) the reasons for entering the premises without a warrant;

(b) the offence being committed or about to be committed; and

(c) the manner in which the investigation was conducted and the measures taken to ensure the protection and safety of the person at risk.

(4) The report referred to in subsection (3) shall be submitted to the Director of Public Prosecutions by the Chief of Police within seven days of its receipt by the Chief of Police.

(5) If a complaint is made against a police officer by a person resident in a premises alleging that the entry of the police officer onto the premises under subsection (1) was unwarranted, the Attorney General shall, after consultation with the Prime Minister, within fourteen days of the complaint having been made, cause the complaint to be investigated and submit a copy of the report of the investigation to the Chief of Police and the Director of Public Prosecutions.

(6) If the report of the investigation concludes that entry made under subsection (1) was unwarranted, the Attorney General shall also submit the report to the Police Service Commission and the report may form the basis of disciplinary action against the police officer.

Duty of police officer to assist victims.

25. If a police officer has entered on to premises under sections 5, 23 or 24(1), the police officer shall —

(a) assist a person who has suffered injury;

(b) ensure the welfare and safety of a child or dependant who may be on the premises; and

(c) prevent any further breach of the law.

Warrant of arrest and procedure upon arrest of respondent where Court issues interim protection order.

26. (1) In granting an interim protection order under section 8, the Court may —

(a) issue a warrant for the arrest of the respondent, in the form set out as Form 9 in Schedule II; or

Schedule II.

(b) suspend the execution of the warrant, subject to

compliance with any prohibition, condition, obligation or order imposed under section 9.

(2) The warrant referred to in subsection (1) shall remain in force until the interim protection order is set aside.

(3) A police officer shall —

(a) execute a warrant of arrest on its production and receipt of an affidavit in the form set out as Form 10 in Schedule II which states that the respondent has breached any prohibition, condition or obligation or order imposed under section 9; or

Schedule II.

(b) arrest the respondent on receipt of an affidavit made by the applicant in the form set out as Form 10 in Schedule II under which the person making the affidavit states that —

Schedule II.

(i) an interim protection order has been issued under section 8 or that a final protection order has been issued under section 16;

(ii) a warrant of arrest for the respondent has been issued;

(iii) the warrant of arrest has been lost or destroyed; and

(iv) the respondent has breached any prohibition, condition, obligation or order imposed under section 9.

(4) The Court shall issue the applicant with a second or further warrant of arrest upon the applicant filing an affidavit which states that —

(a) the respondent has not been arrested; or

(b) the warrant of arrest issued has been lost or destroyed.

(5) Subject to this Act, the provisions of the Criminal Law and Procedure Act, relating to — Chap. 12:01.

(a) the form and manner of execution of a warrant of arrest;

(b) the arrest of a person;

(c) the detention, search, release from custody of a person; and

(d) the criminal prosecution of a person;shall apply with the necessary changes applicable in respect of a warrant of arrest issued under subsection (1).

(6) A respondent arrested under subsection (3) shall —

(a) be released only if —

(i) a Court orders the release; and

(ii) the respondent, having been given a reasonable opportunity to do so, adduces evidence which satisfies the Court that the interests of justice permit his or her release from detention in custody;

(b) be brought before the Court as soon as reasonably possible, but not later than —

(i) forty-eight hours after arrest; or

(ii) at the end of the first Court date, after the expiry of the forty-eight hours, if the forty-eight hours expire outside the ordinary Court

hours or on a day which is not an ordinary Court day; and

(c) be criminally charged with —

(i) an offence under section 40; and

(ii) any other offence resulting from a complaint lodged by the applicant against the respondent.

Powers of arrest where a final protection order is in force.

27. If a final protection order is in force and a police officer believes on reasonable grounds that the respondent has committed or is committing a breach of the final protection order, the police officer may arrest and detain the respondent without a warrant.

Existing criminal law to apply.

28. (1) Subject to subsection (2), if a person is arrested under section 23 or 24, the person shall be charged in accordance with the relevant provisions of the criminal law for committing or attempting to commit any of the offences and shall be dealt with accordingly.

(2) If, on hearing the evidence under section 16 for the granting of a final protection order, the Court is satisfied that —

(a) the incident was an isolated one;

(b) there are circumstances which make it desirable to preserve the family unit; and

(c) the conduct complained of is not sufficiently grave to warrant the imposition of the order or the penalty,

the Court may, with the consent of the applicant, withhold the granting of a final protection order or the imposition of any penalty as prescribed by law and require the respondent to enter into a bond of good behaviour for a period not exceeding six months.

(3) If a bond of good behaviour has been entered into under subsection (2), the Court may prescribe additional conditions as follows:

(a) that the parties receive professional counselling, including family counselling;

(b) that the parties report to an assigned officer at certain fixed intervals; or

(c) that the matter be reviewed by the Court within three months.

(4) A bond of good behaviour entered into under subsection (2) is forfeited if the Court is satisfied that —

(a) the respondent has continued to engage in conduct amounting to domestic violence against the applicant;

(b) based on a report from an assigned officer, the Director, or a police officer, domestic violence is likely to be perpetrated against the applicant; or

(c) the applicant has become fearful of the respondent to the extent that the applicant is no longer willing to continue the domestic relationship.

PART IV
MISCELLANEOUS

Conduct of proceedings.

29. (1) The following persons only may be present during the hearing of any proceedings under this Act:

(a) an officer of the Court;

(b) a party to the proceedings and his or her attorney-at-law;

(c) a witness; or

(d) any other person permitted by the judicial officer to be present.

(2) A witness shall leave the Court room if asked to do so by the judicial officer.

(3) This section does not limit any other power of the Court to hear proceedings in camera or to exclude any person from the Court.

(4) If an application is made on behalf of a child or if a child is the respondent in an application, the parent or guardian of that child or the person with whom the child ordinarily resides with on a regular basis is entitled to be a party to the proceedings.

(5) This section does not prevent a child on whose behalf or against whom an application for an order is made from being heard in the proceedings and if the child expresses his or her views, the Court shall take account of those views, having regard to —

(a) the age and maturity of the child; and

(b) the ability of the child to express his or her views.

Evidence.

30. In any proceedings under this Act other than criminal proceedings, the Court may receive evidence as it thinks fit, whether it is otherwise admissible in a court of law.

Standard of proof.

31. A question of fact arising in any proceedings under this Act, other than criminal proceedings shall be decided on a balance of probabilities.

Restriction on publication of reports.

32. (1) Subject to subsections (3) and (4), a person shall not publish any report of proceedings under this Act, other than criminal proceedings, except with the leave of the Court.

(2) A person who contravenes subsection (1) is guilty of an offence and is liable on summary conviction to a fine of ten thousand dollars or to imprisonment for twelve months.

(3) This section does not limit —

(a) any other enactment relating to the prohibition or regulation of the publication of reports or particulars relating to judicial proceedings; or

(b) the power of the Court to punish any contempt of Court.

(4) This section does not apply to the publication of a report in a publication that is —

(a) of a *bona fide* professional or technical nature; or

(b) intended for circulation among members of the legal profession or the medical profession, public officers, police officers, psychologists, marriage counsellors or social workers.

Orders by consent.

33. In any proceedings under this Act, the Court may make any order with the consent of all the parties to the proceedings.

Appeals.

34. (1) A person aggrieved by —

(a) an order of the Court; or

(b) the refusal of the Court to make an order,may, within twenty-eight days after the decision of the Court, appeal to the Court of Appeal.

(2) Except where the Court which makes an order under this Act otherwise directs, the operation of the order shall not be suspended by virtue of an appeal made under this section and

every order may be enforced in the same manner and in all respects as if an appeal under this section is not pending.

Protection of mortgage.

35. (1) The rights conferred on a person in respect of any property by an order made under this Act is subject to the rights of a person entitled to the benefit of any mortgage, security, charge or encumbrance affecting the property if —

(a) the mortgage, security, charge or encumbrance was registered before the order was registered; or

(b) the rights of that other person entitled to that benefit arise under an instrument executed before the date of the making of the order.

(2) Money payable under any mortgage, security, charge or encumbrance shall not be called up or become due by reason of the making of an order.

Rules of Court.

36. The Chief Justice may make Rules of Court —

(a) to regulate the practice and procedure of the Court with respect to proceedings under this Act; and

(b) to provide for matters as are necessary for giving full effect to this Act and for its due administration.

Property rights.

37. This Act shall not be construed as altering the rights of a spouse in respect of ownership of any real, personal, movable or immovable property.

Notification of domestic violence of a child.
Act No. 4 of 2022.

38. (1) Subject to the Children (Care and Adoption) Act 2023, a —

(a) psychologist

(b) medical practitioner or dentist registered under the Medical Act;

Chap. 39:02.

(c) nurse registered under the Nurses Registration Ordinance; Cap. 152.

(d) mental health practitioner or mental health officer;

(e) social worker; or

(f) teacher,who examines, attends to or deals with a child in circumstances giving rise to reasonable suspicion that the child has been subject to any domestic violence as a result of which the child suffers from injury, whether single or multiple, shall immediately notify a police officer of the circumstances.

(2) A person referred to in subsection (1) is not liable in respect of any notification given in good faith under this section.

Bail.

39. (1) If the Court is required to determine whether to grant bail in respect of an offence committed under this Act, the Court shall consider —

(a) the need to protect the applicant from domestic violence;

(b) the welfare of a child or dependant if the respondent or the applicant has custody of that child or dependant;

(c) the welfare of any child or dependant being a member of the household; and

(d) any hardship that may be caused to the respondent or other members of the family if bail is not granted.

(2) The Court in granting bail, may order that the

recognisance be subject to any one or more of the following conditions, as the Court considers appropriate:

(a) that the respondent not harass or molest or cause another person to harass or molest the applicant;

(b) that the respondent not be present on the premises in which the applicant works or resides; and

(c) that the respondent not be in a locality in which is situated the premises in which the applicant works or resides.

(3) If a police officer believes on reasonable grounds that a person who has been admitted to bail subject to one or more conditions has failed to comply with a condition of the recognisance, the police officer may arrest the person without a warrant.

Offences.

40. A person who contravenes a prohibition, condition or an obligation or order imposed under this Act and for which a penalty is not stipulated, is guilty of an offence and is liable on summary conviction to a fine of five thousand dollars or to imprisonment for five years.

Regulations.

41. The Minister may make regulations to give effect to this Act.

Repeal and savings. Chap. 35:05.

42. (1) The Protection Against Domestic Violence Act, is repealed.

(2) Any application made, proceedings instituted or order made or varied under the repealed Act is taken to have been made or instituted under this Act.

(3) Until replaced by subordinate legislation made under this Act, any subordinate legislation made under the repealed Act shall continue in force with the necessary modifications to bring them into conformity with this Act.

SCHEDULE I

DOMESTIC VIOLENCE ACT, 2023 (Section (4)(1)(a))

Information to victim and applicant regarding his or her rights

1. You have the right to request the assistance of a police officer in order to protect yourself and your child/children and the police officer is obligated to provide you with information on how to obtain a protection order.

2. You may request police assistance in locating and taking you and your child/children to a place of safety, including a shelter, the home of a family member or friend or any other place of safety.

3. You may request that your address not be disclosed to your abuser.

4. If you or your child/children is/are in need of medical treatment, you have the right to request the assistance of a police officer in obtaining such medical treatment.

5. You or a person on you or your child's/children's behalf may obtain an interim protection order from the Court at any time of the day or night and the interim protection order will be served on your abuser free of charge. The interim protection order is of a temporary nature, and if you wish it to be confirmed, you will be required to appear in Court at a later date.

6. The abuser can be ordered to pay emergency monetary relief and any or all contact with you or your child/children may be prohibited.

7. You may also request the Court to convict your abuser or

prohibit the abuser from preventing you to enter the shared household.

8. If you and your child/children require/requires any counselling or support, you should contact the Director, Department of Social Services who can offer services to you and your child/ children.

9. You have the right to lodge a criminal complaint against the abuser if a criminal offence has been committed against yourself and your child/children. You may do this now or at any time in the future.

10. Should you obtain a protection order or lodge a criminal complaint in which false facts are knowingly alleged, you may be convicted of an offence.

If you do not understand any of the above information, you may request more detail from myself or another member of the Dominica Police Force that you may be more comfortable with.

Dated this day of 20 .

.....
Name of Police Officer

.....
Rank

SCHEDULE II

FORM 1

(Section 7(ii))

DOMESTIC VIOLENCE ACT, 2023

APPLICATION FOR PROTECTION ORDER

1.(a) I, …… ("the Applicant") (*full name*), …….. (*occupation*) of ……(*residential address*), …… (*telephone number),* …….. of the Respondent (*nature of domestic relationship with the respondent*); or

(b) I, ...……. (*full name*), …….. (*occupation*) of ……. (*residential address*), …… (*telephone number),* and of …… (*business address*), ……(*telephone number);*

On behalf of: ……..... ..... ("the Applicant") (*full name*), ……..(*occupation*) of ……. (*residential address*), …… (*telephone number),* and of …… (*business address*), …… (*telephone number),* …….. of the Respondent (*nature of domestic relationship with the respondent*);

On whose behalf the application is brought due to…… …… (*state relationship or concern*) and whose consent has been obtained (*except if the applicant is a child or dependant*);

Hereby apply for a protection order against:

…….…. ("the Respondent") (*full name*)
…… (*occupation*) of
……. (*residential address*),
……(*telephone number),*
and of …… (*business address*),
…… (*telephone number).*

2. The following children (*if any*) have been born from the domestic relationship:
……
……

3. The Respondent at or near…… (*state location*), and on or about the ….. day of……..20… committed the following act(s):
.....
.....

I have attached the affidavit, together with any supporting affidavit(s).

4. I request that the Respondent be ordered:

(a) not to commit any act of domestic violence;

(b) not to enlist the help of another person to commit any act of domestic violence;

(c) not to enter the shared household;

(d) not to enter the Applicant's residence;

(e) not to enter the Applicant's place of employment;

(f) not to prevent the Applicant or any child or dependant

who normally resides or resides in the shared household from entering or remaining in the shared household or any part of it;

(g) not to enter the Applicant's place of employment; or

(h) not to commit any other act;

as requested *and/or specified in the affidavit(s).

5. I further request the Court to order that—

(a) a member of the Dominica Police Force is to accompany the Applicant to the residence specified in the application to supervise the collection of the Applicant's personal property;

(b) a member of the Dominica Police Force is to seize the arm or dangerous weapon as specified in the affidavit;

(c) the Respondent is to pay the rent or mortgage payments specified in the affidavit;

(d) the Respondent is to pay emergency monetary relief as specified in the affidavit;

(e) the Respondent is to pay the educational expenses as specified in the affidavit;

(f) the Respondent is refused any contact with the child or children as specified in the affidavit;

(g) the Respondent is granted structured contact with the child or children as specified in the affidavit; or

(h) the address of the Applicant's residence shall not be disclosed to the Respondent.

6. I am likely to report a breach of the Protection Order at the ……..……. Station (*location of station*) of the Dominica Police Service.

7. Additional conditions requested as per affidavit:
……..... ....
Deponent Date

8. I certify that before administering the *oath/ affirmation I asked the Deponent the following questions and noted his or her answers as indicated below:

   (a) Do you know and understand the contents of the above declaration?

   YES/NO

   (b) Do you have any objection to taking the prescribed oath?

   YES/NO

I certify that the Deponent has acknowledged that *he/she knows and understands the contents of this declaration which was *sworn to/affirmed before me, and that the Deponent's *signature/ thumbprint/ mark was placed on this declaration in my presence.

Dated at this day of 20 .

……
Judicial Officer

**Delete whichever is not applicable*

FORM 2 (Section 8(1))

DOMESTIC VIOLENCE ACT, 2023

INTERIM PROTECTION ORDER

IN THE DISTRICT COURT

COMMONWEALTH OF DOMINICA

APPLICATION NO……

BETWEEN

…… **APPLICANT**

AND

..... **RESPONDENT**

1. Respondent's Name……..
   Residential Address…….
   ……
   Telephone No…… ……
   Business Address…….……..…
   ……
   Telephone No…… ……
   Occupation……

2. Whereas the Applicant (or……on behalf of the Applicant), has applied for a protection order against the Respondent, as per the affidavit(s) and record of oral evidence (if any) attached, and after consideration of the application;

3. The Court orders that the application for a protection order be:
Dismissed; or

Granted; and the Respondent is ordered:

(a) not to commit the following act(s) of domestic violence:

……

……

(b) not to enlist the assistance of any other person to commit the acts of domestic violence specified in paragraph (a);

(c) not to enter the shared household at……
……..…..;

(d) not to enter the following parts of the shared household:
……
……
……at……
……;

(e) not to enter the Applicant's residence at……....
……;

(f) not to enter the Applicant's place of employment at……;

(g) not to prevent the Applicant or any child or dependant who normally resides or resides in the shared household at……
from entering or remaining in the shared household, or any part of it;

(h) not to commit any other act, to wit……
…….
……;

(i) to make rent or mortgage payments in the sum of $.....……per month;

(j) to pay the sum of $.....….. per month to the applicant as educational expenses.

4. It is further ordered that:

(a) a member of the police service accompanies the Applicant to the following residence in order to supervise the collection of personal property, i.e.:
……
……;

(b) a member of the police service at ……..……seizes the following arm or dangerous weapon in the possession of the respondent, i.e.:
……
……;

(c) the Applicant's address is not to be disclosed to the Respondent;

(d) The Respondent is refused any contact with the following children i.e.:
…….....
…….....
…….;

(e) the Respondent is allowed contact with the following children, i.e.:
……..
……
on the following basis:
……..
……

(f) a warrant is authorised for the arrest of the Respondent, the execution of which is suspended subject to the respondent's compliance with the provisions of the protection order as stated above; and

(g) a copy of this order and the warrant of arrest be forwarded to the police station at……... once this interim protection order has been served on the Respondent.

5. The Respondent is furthermore informed of his or her right to appear in the High Court at…….on the….. day of……20… at…….in order to show cause as to why the interim protection order should not be confirmed and made final.

Dated this day of , 20 .

.....
Judicial Officer

FORM 3 (Section 13(2))

DOMESTIC VIOLENCE ACT, 2023

NOTICE OF PROCEEDINGS

IN THE DISTRICT COURT

COMMONWEALTH OF DOMINICA

APPLICATION NO………

BETWEEN

…….. **APPLICANT**

AND

…….. **RESPONDENT**

TO THE RESPONDENT

An application under section 5 of the Domestic Violence Act, 2023, for a protection order has been made by …….. (*name of Applicant*)

A copy of the application is attached. The application has been set down for hearing on the …….day of……., 20… at……a.m./p.m. at……, Commonwealth OF Dominica.

If you do not appear in person at the Hearing of the Application, the Court may:

(a) deal with the application in your absence; or

(b) issue a warrant for your arrest to be brought before the Court.

Dated this day of , 20 .

……..…

Registrar

FORM 4 (Section 13(5))

DOMESTIC VIOLENCE ACT, 2023

AFFIDAVIT FOR USE IN PROVING SERVICE OF PROCESS

IN THE DISTRICT COURT

COMMONWEALTH OF DOMINICA

APPLICATION NO……

BETWEEN

…….. **APPLICANT**

AND

…….. **RESPONDENT**

Return of service of process in respect of domestic violence offence(s) for the [Family/District] Court

Name of Applicant……
Name of Respondent……
Document served……..
Date of service……..
Place of service……..
Mode of service…….

I swear that the above Return of Service is true and in accordance with the facts of such service.

Sworn to at the .....,)
Commonwealth of Dominica, this …….....)
day of ……., 20…) ……

Deponent

Before me:

……

FORM 5 (Section 16(1), 16(6))

DOMESTIC VIOLENCE ACT, 2023

FINAL PROTECTION ORDER

IN THE DISTRICT COURT

COMMONWEALTH OF DOMINICA

APPLICATION NO……

BETWEEN

…….. **APPLICANT**

AND

…….. **RESPONDENT**

Whereas the Applicant has applied for a protection order; and
After considering the facts of the matter;
The Court orders that the interim protection order be:

1. **CONFIRMED**

2. **AMENDED AS FOLLOWS**:
   .....
   .....

3. **SET ASIDE**.

Dated at this day of 20 .

.....……
Judicial Officer

FORM 6 (Section 19(1))

DOMESTIC VIOLENCE ACT, 2023

APPLICATION FOR VARIATION OR REVOCATION OF INTERIM/FINAL PROTECTION ORDER

IN THE DISTRICT COURT

COMMONWEALTH OF DOMINICA

APPLICATION NO……

BETWEEN

…….. **APPLICANT**

AND

…….. **RESPONDENT**

I, …… (*name of Applicant*) hereby apply for a variation/revocation of the order made against ……. (*name of Respondent*) on the …….. day of……, 20… by the Court (a copy of which is attached to the said application) in respect of certain conduct or threatened conduct towards ……. (*name of person who is protected by the order*).

I ask for a variation of the order in the following terms:
(Specify details of variation)

Dated this day of , 20 .

……..
Applicant

FORM 7 (Section 19(4))

DOMESTIC VIOLENCE ACT, 2023

ORDER VARYING INTERIM/ FINAL PROTECTION ORDER

IN THE DISTRICT COURT

COMMONWEALTH OF DOMINICA

APPLICATION NO……

BETWEEN

…….. **APPLICANT**

AND

…….. **RESPONDENT**

The Court, having heard an application made under section 19 of the Act by ……. (*name of the Applicant*) in respect of conduct or threatened conduct of …… (*name of Respondent*) and the Court having on the …...day of ……., 20….. made an order, a copy of which is attached here, prohibiting the respondent from engaging in the conduct specified in the order.

NOW the Court on the application of……..… (*name of the Applicant*) does this day order that the interim/final protection order be:

1. **REVOKED** as at *(specify effective date of revocation*)

2. **VARIED AS FOLLOWS**: (specify details of variation).

Dated this day of , 20 .

……
Judicial Officer

FORM 8 (Section 22(3))

DOMESTIC VIOLENCE ACT, 2023

DOMESTIC VIOLENCE POLICE REPORT

PART I:

1. (a) Station…… (b) Division……
   (c) Reference No……

2. Mode of report ……

3. (a) Date …... (b)Time …... (c) Diary Reference .....

4. Recorded by:
   Name…… Number …… Rank ……

PART II:

5. Complaint made by…….

6. Address…….
   ……...

7. Relationship of complainant to victim or alleged offender
   ……..……...

8. Relationship of victim to alleged offender
   ……..……

9. Name of victim ……..…….

10. (a) Sex ..... (b) Age ..... (c) Occupation .....

11. Address…….
    ……...

12. Telephone No……..

13. Employment Address ……
……

14. Nature of domestic relationship to alleged offender ……
……..

15. Name of alleged offender……

16. (a) Sex ….. (b) Age …… (c) Occupation…….……

17. Address……
……...

18. Telephone No……..

19. Employment Address ……
……

20. Nature of domestic relationship to alleged offender……

21. Name of Witness……..

22. Address……
……...

23. Telephone No……..

24. Relationship to victim/alleged offender……

25. Fact, as reported:
……
……
……
……
……

25. Extent of Inquiry……

26. Medical Report Form attached: Yes No

27. Instrument used to inflict injury (*if any*)
……

28. Whereabouts of children at time of incident (*if any*)
……

PART III:

29. Were previous complaints were made? Yes No

30. If yes:

(a) Date..... (b) Time..... (c) Diary Reference ……..….....

31. Investigator:

(a) Name…… (b) Number… (c) Rank……

32. Action taken……
……

33. Any other previous complaints made:

(a) Date..... (b)Time…. (c)Diary Reference……..….....

34. Investigator:

(a) Name…… (b) Number…… (c) Rank……

35. Action taken……
……

36. Is a protection order in existence? Yes No

37. Date of Issue……

38. Comments: ……
……
……

39. Duration of protection order……

PART IV:

ACTION TAKEN WITH RESPECT TO PRESENT REPORT

Date …… Time ……

Action taken by:……..

Arrest made: Yes No

If yes:

Date of arrest…… Mode of arrest ……

Present status of report …….

CHARGES PREFERRED:

(1)……

(2)……

(3)……..

(4)……..

STATE REASONS IF NO CHARGES PREFERRED:
……...
.....

Investigator	Supervising Officer
……..	……
Date	Date

FORM 9 (Section 26(1))

DOMESTIC VIOLENCE ACT, 2023

WARRANT OF ARREST

IN THE DISTRICT COURT

COMMONWEALTH OF DOMINICA

APPLICATION NO……

BETWEEN

…….. **APPLICANT**

AND

…….. **RESPONDENT**

To all Police Officers:

Whereas *an Interim Protection Order/a Protection Order was granted against the Respondent by the Court on the ……. day of ……., 20….; and

Whereas the Applicant has stated that the Respondent has breached (a) condition(s) of the *Interim Protection Order/ Protection Order;

Therefore you are hereby authorised and ordered to immediately arrest the Respondent in terms of the Domestic Violence Act, 2017.

Given under my hand this day of , 20 .

……..
Judicial Officer

**Delete whichever is not applicable.*

FORM 10 (Section 26(3))

DOMESTIC VIOLENCE ACT, 2023

BREACH OF INTERIM PROTECTION ORDER/ PROTECTION ORDER

IN THE DISTRICT COURT

COMMONWEALTH OF DOMINICA

APPLICATION NO……

BETWEEN

…….. **APPLICANT**

AND

…….. **RESPONDENT**

1. I, …… ("the Applicant") (*full name*), …….. (*occupation*) of ……. (*residential address*), ……. (*telephone number):*

hereby declare under oath/solemnly affirm that:

An Interim Protection Order/Final Protection Order was granted on the … day of …… , 20... in the Court at …..…… against …….…..… ("the Respondent") (*full name)*, …… (*occupation*) of ……..... (*residential address*), …… (*telephone number),* and of ……..... (*business address*), …… (*telephone number).*

2. *A copy of the Interim Protection Order/Final Protection Order (indicating what orders were made) is attached.

(or)

*A copy of the Interim Protection Order/ Final Protection Order cannot be attached for the following reasons:
……
……

3. In the said Interim Protection Order/ Final Protection Order the Respondent was ordered:

(a) ……....

(b) .....

4. The Respondent has breached the Interim Protection Order/ Final Protection Order (which has not been set aside), in that *he/she on the ……. day of ……., 20…..

…….... ……
Signature of Deponent Date

5. I certify that before administering the *oath/ affirmation I asked the Deponent the following questions and noted *his/ her answers in *his/her presence as indicated below:

(a) Do you know and understand the contents of the above declaration?

YES/NO

(b) Do you have any objection to taking the prescribed oath?

YES/NO

(c) Do you consider the prescribed oath to be binding on your conscience?

YES/NO

I certify that the Deponent has acknowledged that *he/she knows and understands the contents of this declaration which was *sworn to/affirmed before me, and that the Deponent's *signature/ thumb print/mark was placed on this declaration in my presence.

Dated at this day of , 20 .

.....
Judicial Officer

**Delete whichever is not applicable*

Passed in the House Assembly this 25th day of April, 2023.

DANIEL JAMES
Clerk of the House of Assembly

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